



Covered Materials & Producer Definitions in Oregon

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Version History

Version	Published Date	Updates
Version 1.0	Sept. 30, 2024	Initial release
Version 1.1	Nov. 18, 2024	Minor updates to reflect the change in CAA's domain to "circularaction.org" and the launch of the Producer Support email address Producer.Support@circularaction.org .
Version 2.0	Jan. 20, 2025	Phase two Rules were approved by the Oregon Environmental Quality Commission (EQC) on Friday, Nov. 22, 2024. Version 2.0 reflects adopted rules in Oregon with the following updates of note: • Shipping or moving items have been added as a category of covered products. • Wraps sold as a product directly to consumers is now designated as Food Serviceware, not packaging. • The producer responsible for service packaging is now the person that first sells the packaging in or into this state, updated from the first to distribute the packaging in or into the state. • Clarification of the producer responsible for paper used for copying, writing or other general use to avoid double counting.
Version 3.0	June 2, 2025	Additional business relationship scenarios added to clarify the obligated producer in different business relationships. In response to the most common producer inquiries, Appendix A was added which includes a sample list of covered and non-covered products and an FAQ.



Version	Published Date	Updates
Version 5.0	March 18, 2026	Separation of Colorado and Oregon guidance to provide standalone documents for each state. Additional business relationship scenarios added for Service Packaging and Food Serviceware. Additional FAQs clarifying reporting of banned and excluded materials: • Wine in a can included as part of the Oregon bottle bill effective July 1, 2025. • Single-use checkout bags which are prohibited from being provided by retail establishments and restaurants to customers effective Jan. 1, 2027 as outlined in <u>SB 551</u>. • Polystyrene food containers, foam packaging peanuts and foodware containers containing intentionally added perfluoroalkyl or polyfluoroalkyl substances banned in Oregon effective Jan. 1, 2025 as outlined in <u>SB 543</u>.

Introduction

The information provided in this guidance document is designed to help businesses identify the covered materials captured under [ORS §§ 459A.860–459A.975](#) and its rules promulgated under [Division 90 of Chapter 340](#) of Oregon’s Administrative rules (OAR or “Rules”)” <https://secure.sos.state.or.us/oard/displayDivisionRules.action?selectedDivision=1487> and the obligated producer for those materials. Circular Action Alliance (CAA) is providing the following detailed information to prepare Oregon producers for annual reporting of supply data.

Obligated producers that have not yet registered with CAA should do so and will also be required to sign a Producer Participant Agreement and state addendum prior to reporting. Producers may register at <https://circularaction.org/registration>.

The definitions of obligated producer and covered materials were subject to Oregon’s rulemaking process. The guidance provided in this document reflects the rules adopted by the Environmental Quality Commission in November 2024. DEQ has initiated a third round of rulemaking which will not be completed before February 2027. This guidance does not incorporate the rules being considered as part of the third round of rulemaking.

The information provided in this document is for informational purposes only and does not constitute legal advice. CAA is not a law firm and does not provide legal advice or recommendations. This guidance is not a substitute for professional legal advice. Readers should consult their attorney before acting on any information contained in this document. CAA expressly disclaims all liability for actions taken or not taken based on the contents of this document.

Determining Your Obligations

There are two primary questions businesses need to ask to help determine if they are obligated under ORS §§ 459A.860–459A.975 and its Rules:

- Is the material associated with my products covered by Oregon’s Extended Producer Responsibility (EPR) law?
- Is my business the responsible producer for those materials?

EPR laws for packaging and paper vary from state to state but are generally designed to apply to single-use packaging, paper, and some disposable products. As a first step in the process of identifying whether your company has obligations in Oregon, companies should review with their legal counsel the definitions of each material type to determine whether the materials associated with the products placed in the market are subject to Oregon’s EPR law. Second, companies should review the



producer hierarchy associated with the covered materials to determine if their business is the obligated producer for those materials.

Oregon has also identified exemptions of specific products and has also exempted certain producers from the obligations of the state EPR law. Those exemptions are also outlined in this guidance document.

For the convenience of producers, CAA compiled into one place Oregon's EPR statutory and regulatory language. This provides producers one resource for all relevant definitions and associated producer hierarchies for different categories of covered materials and products. Producers will also find a series of scenarios that illustrate common business relationships to indicate which business in the supply chain is the obligated producer for the covered material. When reviewing the definitions below, producers should note that in Oregon, the 'consumer' is the end user of a covered material, inclusive of residential consumers who use products for their own personal use, as well as businesses that are the end users of a covered product

Oregon Definitions

Definition of Producer for various Covered Material (referred to as Covered Products in Oregon's Statute) Types
[ORS 459A.863](#) Definitions.

(6)(a) "Covered product" means:

- (A) Packaging
- (B) Printing and writing paper and
- (C) Food serveware

Rules: [OAR 340-090-0840 to 340-090-860](#)

<https://secure.sos.state.or.us/oard/displayDivisionRules.action?selectedDivision=1487>



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
Packaging ORS 459A.863 Definitions. (18)(a) “Packaging” means: (A) Materials used for the containment or protection of products, including but not limited to paper, plastic, glass or metal or a mixture thereof; (B) Single-use bags, including but not limited to shopping bags; and (C) Nondurable materials used in storage, shipping or moving, including but not limited to packing	Packaged item supplied at a physical retail location	ORS 459A.866 – Determining producers of covered products For purposes of ORS 459A.860 to 459A.975, the producer of a covered product shall be determined as follows: (1)(a) For items sold in packaging at a physical retail location in this state: (A) If the item is sold in packaging under the manufacturer’s own brand or is sold in packaging that lacks identification of a brand, the producer of the packaging is the person that manufactures the packaged item; (B) If the item is manufactured by a person other than the brand owner, the producer of the packaging is the person that is the licensee of a brand or trademark under which a packaged item is used in a commercial enterprise, sold, offered for sale or distributed in or into this state, whether or not the trademark is registered in this state; or (C) If there is no person described in subparagraphs (A) and (B) of this paragraph within the United States, the producer of the packaging is the person that imports the packaged item into the United States for use in a commercial enterprise that sells, offers for sale or distributes the item in this state. OAR 340-090-0860 – Producer Definitions



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
materials, moving boxes, file boxes and folders. (b) “Packaging” does not include: (A) Food serviceware; or (B) Sharps, as defined in ORS 459.386.		(1) Tiered producer definition for items sold in packaging at a physical retail location in this state. For purposes of ORS 459A.866(1)(a): (a) A person that manufactures a packaged item includes a person that directs the manufacturing of the item, including setting specifications for an item's packaging. Purchasing or ordering an item for retail sale in the normal course of business is not directing manufacturing. (b) The manufacturer’s own brand includes any brand or trademark that the manufacturer wholly owns or co-owns according to the United States Patent and Trademark Office.
	Packaged item supplied through remote distribution (ecommerce) “Packaged item” and “Shipping packaging”	ORS 459A.866 1(b) For items sold or distributed in packaging in or into this state via remote sale or distribution: (A) The producer of packaging used to directly protect or contain the item is the same as the producer for purposes of paragraph (a) of this subsection. (B) The producer of packaging used to ship the item to a consumer is the person that packages and ships the item to the consumer.
	Storage Item supplied at a physical retail location OAR 340-090-0840 Covered Products	OAR 340-090-0860 Producer Definitions (2) The producer of a storage item as defined at OAR 340-090-0840(1)(a), sold at a physical retail location in this state shall be determined as follows:



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
	(1) Food serveware and packaging. For purposes of ORS 459A.863 (7) and (18): (a) Packaging includes materials used in storage. A storage item is an item purchased empty and used for storage of other material, including but not limited to file boxes and folders, moving boxes, plastic storage bags including garbage bags, food containers for perishable or nonperishable foods, and plastic storage containers for durable items including large bins with and without lids	(a) If the storage item is sold under the manufacturer's own brand or is sold without identification of a brand, the producer of the storage item is the person that manufactures the storage item; (b) If the storage item is manufactured by a person other than the brand owner, the producer of the storage item is the person that is the licensee of a brand or trademark under which the storage item is used in a commercial enterprise, sold, offered for sale or distributed in or into this state, whether or not the trademark is registered in this state; or (c) If there is no person described in subparagraphs (A) and (B) of this paragraph within the United States, the producer of the storage item is the person that imports the storage item into the United States for use in a commercial enterprise that sells, offers for sale or distributes the item in this state.
	Shipping or Moving Items supplied at a physical retail location	OAR 340-090-860 Producer Definitions



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
	OAR 340-090-840 Covered Products (1) Food serviceware and packaging. For purposes of ORS 459A.863 (7) and (18): (c) Packaging includes materials used for shipping or moving. A shipping or moving item is used for shipping or moving products and includes but is not limited to boxes, envelopes, labels, bubble wrap, packing peanuts, packing paper and packing tape.	(3) The producer of shipping or moving items, as defined at OAR 340-090-0840(1)(c), sold at a physical retail location in this state shall be determined as follows: (a) If the shipping or moving item is sold under the manufacturer's own brand or is sold without identification of a brand, the producer of the shipping or moving item is the person that manufactures the shipping or moving item; (b) If the shipping or moving item is manufactured by a person other than the brand owner, the producer of the shipping or moving item is the person that is the licensee of a brand or trademark under which the shipping or moving item is used in a commercial enterprise, sold, offered for sale or distributed in or into this state, whether or not the trademark is registered in this state; or (c) If there is no person described in subparagraphs (A) and (B) of this paragraph within the United States, the producer of the storage item is the person that imports the shipping or moving item into the United States for use in a commercial enterprise that sells, offers for sale or distributes the item in this state.
	Service Packaging supplied at a physical retail location	OAR 340-090-0860 Producer Definitions (4) For service packaging sold or provided to a consumer at a physical retail location in this state, the producer of the service packaging is the person that <i>first sells the packaging in or into this state</i> .



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
	OAR 340-090-0840 Covered Products (1) Food serviceware and packaging. For purposes of ORS 459A.863(7) and (18): (b) Packaging includes service packaging. Service packaging is packaging that is filled at the point of sale for the purpose of transferring goods to a consumer. Service packaging includes but is not limited to: (A) Single-use shopping bags, including checkout, produce, and bulk food bags; (B) Bags, wraps, single-use trays and associated items such as paper used to separate slices of cheese, and used by a retailer for	



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
	packaging cheese, tofu, produce, meat, and fish; (C) Trays provided to a consumer for containing multiple plants purchased at a nursery; and (D) Bags or envelopes used to contain screws, nails and other bulk fasteners at a hardware store.	
	All other packaging that is a covered product	ORS 459A.866 Determining producers of covered products. For purposes of ORS 459A.860 to 459A.975, the producer of a covered product shall be determined as follows: 1(c) For all other packaging that is a covered product, the producer of the packaging is the person that first distributes the packaged item in or into this state.
Food Serviceware ORS 459A.863 Definitions. (7)	Food Serviceware (including wraps supplied as product)	ORS 459A.866 Determining producers of covered products. For purposes of ORS 459A.860 to 459A.975, the producer of a covered product shall be determined as follows:



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
“Food serviceware” means paper or plastic plates, wraps, cups, bowls, pizza boxes, cutlery, straws, lids, bags, aluminum foil or clamshells or similar containers: (a) That are generally intended for single use; and (b) That are sold to a retailer or a dine-in food establishment or a take-out food establishment, regardless of whether the item is used to prepackage food for resale, is filled on site for food ordered by a customer or is resold as is	OAR 340-090-0840 Covered Products (1) Food serviceware and packaging. For purposes of ORS 459A.863(7) and (18): (d) Food serviceware includes wraps sold directly to consumers, including but not limited to aluminum foil, film wrap, wax paper, and parchment paper. (e) Food serviceware is used to contain or consume food or drink that is ready to eat. Food serviceware is sold empty or unused to a retailer, a dine-in food establishment or a take-out food establishment, regardless of whether the item is used to prepackage food for resale, is filled on site	(3) The producer of food serviceware is the person that first sells the food serviceware in or into this state.



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
	for food ordered by a customer or is resold as is. As used in this Subsection, ready to eat food is prepared or cooked in advance, with no further cooking or preparation required before consumption. Food serveware is used to contain or consume food or drink that is ready to eat. Food serveware is sold empty or unused to a retailer, a dine-in food establishment or a take-out food establishment, regardless of whether the item is used to prepackage food for resale, is filled on site for food ordered by a customer or is resold as is.	



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
Printing and Writing Paper ORS 459A.863 Definitions. (20) “Printing and writing paper” includes but is not limited to: newspaper, magazines, flyers, brochures, booklets, catalogs, telephone directories and paper used for copying, writing or other general use.	Publications	ORS 459A.866 Determining producers of covered products. For purposes of ORS 459A.860 to 459A.975, the producer of a covered product shall be determined as follows: (2)(a) For printing and writing paper that is a magazine, newspaper, catalog, telephone directory or similar publication, the producer is the publisher. OAR 340-090-0860 Producer Definitions (5)(a) Pursuant to ORS 459A.866(2)(a), the publisher is the producer of printing and writing paper that is a magazine, newspaper, catalog, telephone directory, or other specialty-printed publication.
	Paper used for copying, writing or other general use.	ORS 459A.866 Determining producers of covered products. For purposes of ORS 459A.860 to 459A.975, the producer of a covered product shall be determined as follows: (2)(b) For printing and writing paper not described in paragraph (a) of this subsection, the producer is: (A) The person that manufactures the printing and writing paper under the manufacturer’s own brand; (B) If the printing and writing paper is manufactured by a person other than the brand owner, the person that the owner or licensee of a brand or trademark under which the printing and writing paper is used in a commercial enterprise, sold, offered for sale or distributed in or



Covered Product Type	Specific Scenario	Producer Hierarchy (Statute and Rules)
		into this state, whether or not the trademark is registered in this state; or (C) If there is no person described in subparagraphs (A) and (B) of this paragraph within the United States, the person that imports the printing and writing paper into the United States for use in a commercial enterprise that sells, offers for sale or distributes the printing and writing paper in this state. OAR 340-090-0860 Producer Definitions (5)(b) Pursuant to ORS 459A.866(2)(b)(A)-(C), a three-tiered definition is used to determine the producer of all printing and writing paper that is not a specialty-printed publication. (c) Prevention of double-counting. In the case that a specialty-printed publication is produced from paper used for copying, writing, or other general use (for example, from a ream of 8.5x11 paper), the three-tiered definition at ORS 459A.866(2)(b) applies to determine the producer for the source paper, and the publisher is not the producer. (d) Pursuant to ORS 459A.866(2)(b)(A), a person that manufactures a printing and writing paper product includes a person that directs the manufacturing of the product, including setting specifications for the product. Purchasing or ordering a product for retail sale in the normal course of business is not directing manufacturing.



Exempt Materials in Oregon

The following table, organized by material category, outlines the products that have been exempted from the EPR program in Oregon.

Product Category	Oregon
	Statutory Reference: ORS 459A.863 Definitions. As used in ORS 459A.860 to 459A.975: (6)(b) "Covered Product" does not include: <i>(The clauses below refer to the statutory definitions of exempted materials unless the exemptions have been further clarified through Rules which will include an OAR reference).</i>
Beverage Containers	(A) A beverage container, as defined in <u>ORS 459A.700</u>. (P) Wine and spirit containers for which a refund value is established under Oregon law. This includes wine in a can, effective July 1, 2025, pursuant to <u>SB 1520</u>
Packaging for Drug, Medical Devices & Nutritional Supplements	(M) Packaging and paper products sold or supplied in connection with: (i) Prescription drugs as defined in ORS 689.005 (Definitions); (ii) Nonprescription drugs as defined in ORS 689.005 (Definitions); (iii) Drugs marketed under a brand name as defined in ORS 689.515 (Regulation of generic drugs); or (iv) Drugs marketed under a generic name as defined in ORS 689.515 (Regulation of generic drugs).



Product Category	Oregon
	(N) Packaging and paper products sold or supplied in connection with drugs that are used for animal medicines, including but not limited to parasiticide drugs for animals. (O) Packaging and paper products sold or supplied in connection with: (i) Infant formula as defined in <u>21 U.S.C.321(z)</u>; (ii) Medical food as defined in <u>21 U.S.C. 360ee(b)(3)</u> or (iii) Fortified oral nutritional supplements used for individuals who require supplemental or sole source nutrition to meet nutritional needs due to special dietary needs directly related to cancer, chronic kidney disease, diabetes, malnutrition, or failure to thrive, as those terms are defined as by the International Classification of Diseases, Tenth Revision, or other medical conditions as determined by the commission. OAR 340-090-0840 Clarifications to the Definition of Covered Products (2) The following are not covered products: b) Packaging of the following medical devices: (A) Class II medical devices, as defined in the Federal Food, Drug, and Cosmetics Act at <u>21 U.S.C. Sec 360(c)</u>, that are sold labeled as sterile and for which a 510(k) premarket notification pursuant to <u>21 USC 360k</u> has been cleared by the Food and Drug Administration. (B) Class III medical devices as defined in the Federal Food, Drug, and Cosmetics Act at <u>21 U.S.C. Sec 360(c)</u>. (c) Packaging used in healthcare facilities, as defined in ORS 442.015, for the management of infectious waste as defined in ORS 459.386.



Product Category	Oregon
Paper and Paper Products	(B) Bound books
Hazardous Products	(F) Liquefied petroleum gas containers that are designed to be refilled. (I) Packaging related to containers for architectural paint, as defined in ORS 459A.822 (Definitions for ORS 459A.820 to 459A.855), that has been collected by a producer responsibility organization under the program established under ORS 459A.820 (Findings) to 459A.855 (Product Stewardship Fund). (Q) Packaging for products: (i) That are required under <u>40 C.F.R.156.140</u> (Rendition and entry of verdict on docket), or other federal regulation pertaining to toxic or hazardous materials, to state on the label or container that the packaging should not be recycled or should be disposed of in a manner other than recycling; or (ii) Identified by the commission by rule as product that is required by law to state on the label or container that the packaging should not be recycled or should be disposed of in a manner other than recycling. OAR 340-090-0840 Clarifications to the Definition of Covered Products (2) Pursuant to ORS 459A.863(6)(b)(R) the following are not covered products: (d) Packaging of the following agricultural chemicals:



Product Category	Oregon
	(A) Pesticides classified as restricted-use under the Federal <u>Insecticide, Fungicide and Rodenticide Act, 7 U.S.C. SEC. 136</u> and 40 CFR part 152, subpart I, and sold to licensed commercial applicators. (B) Returnable or refillable intermediate bulk containers containing commercial use pesticides, fertilizers and agricultural amendments. (C) Returnable or refillable asset totes, drums, and kegs containing commercial use pesticides, fertilizers and agricultural amendments. (D) Rigid HDPE packaging of commercial-use pesticides, fertilizers adjuvants, surfactants, and agricultural amendments produced by members of the Ag Container Recycling Council or ACRC and eligible for collection by ACRC. (i) This exemption does not apply in any year that ACRC fails to submit data to DEQ, in a form and manner provided by DEQ, that demonstrates ACRC's maintenance of a consistent collection rate and standard of convenience compared with a baseline year of 2023, and that ACRC is recycling the containers at responsible end markets. (ii) Once every five years and beginning no later than in 2027, ACRC must corroborate its self-reporting by arranging and paying for a third-party audit of its collection program in Oregon and providing results to the department. (e) Reusable and refillable pressurized cylinders of the following types: (A) Pure hydrogen or oxygen cylinders of any size; (B) Acetylene cylinders, 10 cubic feet and larger in size; and (C) Carbon dioxide cylinders, 5 lbs. and larger in size.

Product Category	Oregon
Products Related to Specific Industry Sectors	(K) Items sold on a farm or used on a farm, including items used for farm use, as defined in <u>ORS.215.203</u> (Zoning ordinances establishing exclusive farm use zones), or for processing on a farm, provided that an item used on a farm is not subsequently sold at a retail establishment that is not located on a farm. (L) Items used by a nursery licensed under ORS 571.055 (License required to grow or deal in nursery stock) that generates the majority of the nursery's revenue through the sale of nursery stock, as defined in ORS 571.005 (Definitions for ORS 571.005 to 571.230), provided that the items are not sold through retail sales.
Food Service	(C) Napkins, paper towels or other paper intended to be used for cleaning or the absorption of liquids.
Storage, Shipping and Moving Packaging (Tertiary Packaging)	(D) Rigid pallets used as the structural foundation for transporting goods lifted by a forklift, pallet jack or similar device. (E) Specialty packaging items that are used exclusively in industrial or manufacturing processes, including but not limited to: (i) Cores and wraps for rolls of packaging sold by a mill to a packaging converter or food processor; and (ii) Trays, whether designed for a single use or multiple uses, used for the transport of component parts from a parts supplier to a manufacturer that assembles those parts. (H) Pallet wrap or similar packaging used to secure a palletized load if added by a person that is not the producer of the palletized covered products.
Durable Packaging	OAR 340-090-0840 Clarifications to the Definition of Covered Products



Product Category	Oregon
	(2) Pursuant to ORS 459A.863(6)(b)(R) the following are not covered products: (a) Packaging that is used for the long-term (five or more years) storage of a durable good as defined by the Bureau of Economic Analysis, United States Department of Commerce, in its online glossary at https://www.bea.gov/help/glossary/durable-goods.
Other	(G) A material that the producer demonstrates is exempt under ORS 459A.869 (Requirements for producers and producer responsibility organizations). OAR 340-090-0840 Clarifications to the Definition of Covered Products (3) For purposes of ORS 459A.869(13), an exemption for products collected and recycled outside of Opportunity to Recycle: a) Collection services not provided under the opportunity to recycle include but are not limited to the following. (A) Any collection from a commercial generator that is not used by a local government to comply with ORS 459A.005 or .007, including: (i) Commercial generators collecting and sending materials directly to end markets and exempt from the requirements of ORS 459A.005 and .007 per ORS 459A.075; and (ii) Collection points that accept materials from consumers and send them directly to end markets. (B) Any collection of materials from residential generators that is not used by a local government to comply with ORS 459A.005 or .007 and that does not send materials to a commingled recycling processing facility before they go to end markets.

Product Category	Oregon
	(b) Separation means separation of two or more commingled materials from one another or removal of contamination from a material that was collected source segregated. (c) A material is recycled at a responsible end market if the end market has been verified as responsible by a producer responsibility organization pursuant to OAR 340-090-0670(3)(f) or certified responsible through third-party certification from an Environmental Quality Commission approved program pursuant to ORS 459A.955(2)(h)(A)(ii) and OAR 340-090-0670(3)(a)(B). The certification, verification, or the most recent renewal audit of either the certification or the verification conducted pursuant to OAR 340-090-0670(3)(g) must have occurred within a calendar year of the producer requesting the exemption. (d) Materials collected through a recycling collection service provided under ORS 459A.896(1) and used by a producer responsibility organization to satisfy the convenience standards are not eligible for the exemption. This applies both to physical collection points counted by a producer responsibility organization toward the convenience standard at OAR 340-090-0640(2) and to collection applied by a producer responsibility organization toward alternative compliance to convenience standards pursuant to OAR 340-090-0640(6) (J) Any item that is not ultimately discarded inside this state, whether for purposes of recovery or disposal (R) Any other material, as determined by the commission by rule, after consultation with the Oregon Recycling System Advisory Council.



Exempt Producers

Businesses that meet one or more of the following criteria are exempt from the Oregon EPR program:

	Oregon
	ORS 459A.863 Definitions <i>(the clauses below refer to the statutory definitions of exempt producers unless the exemptions have been further clarified through Rules which will include an OAR reference)</i>
Small Business	(32) Small producer” means a producer that: (a) Is a nonprofit organization; (b) Is a public body, as defined in ORS 174.109 (“Public body” defined); (c) Has a gross global revenue of less than \$5 million for the organization’s most recent fiscal year; (d) Sold in or into Oregon less than one metric ton of covered products for use in this state in the most recent calendar year; (g) Operates a single retail sales establishment, has no online sales and is not supplied or operated as part of a franchise or a chain. OAR 340-090-0860 Clarification to the Producer Definitions (1) (5) For purposes of ORS 459A.863(8) and (32) a producer includes associate producers as provided by this section. (a) Associated producers are two or more producers that are: (A) Owned by members of the same family, including siblings, spouses, ancestors, and lineal descendants, and engaged in the same type of business activity; (B) Jointly-owned where one producer owns or controls, directly or indirectly,



	Oregon
	more than 50 percent of the outstanding stock, membership, partnership or similar interests of the other producer or producers; (C) Members of the same controlled group as defined in Section 1563(a) of the Internal Revenue Code; (D) A fiduciary or fiduciaries of a trust and a corporation of which more than 50 percent in value of the outstanding stock is owned or controlled by the trust or by a person who is a grantor of the trust; (E) A corporation and a partnership or LLC, or partnerships or LLCs, if the same persons own or control more than 50 percent of the outstanding stock, or more than 50 percent of the interest, of the corporation and of the partnership or LLC; (F) S corporations or C corporations if the same persons own or control more than 50 percent of the outstanding stock of each or all corporations. (b) Associated producers' data on covered product sold in or into the state and gross annual revenues must be aggregated for the purpose of applying the large producer and small producer definitions, and for determining producer eligibility for uniform fees pursuant to ORS 459A.884(6).
Beverage Manufacturer	(e) Is a manufacturer of a beverage sold in a beverage container, as those terms are defined in ORS 459A.700 (Definitions for ORS 459A.700 to 459A.744), that sold in or into Oregon less than five metric tons of covered products, including but not limited to secondary and tertiary packaging for beverage containers, for use in this state in the most recent calendar year;
Food Service	(f) (A) Is a restaurant, food cart or similar business establishment that primarily sells to members of the public food that is generally intended to be consumed



	Oregon
	immediately and without the need for further preparation, either on or off the premises; and (B) Is not a producer of food serveware as described in ORS 459A.866

Business Relationship Scenarios

The following business relationship scenarios have been prepared by CAA to help producers interpret the definitions of covered products and the hierarchies of obligated producer for those materials in typical business relationships. These scenarios consider both the statutory and rule language and are intended as guidance for informational purposes only and do not constitute legal advice.

Obligated Producer Scenarios for Products Sold at Retail

	Scenario	Obligated Producer
1.	Food and Beverage Company A manufactures cereal at its plant in the United States. Company A packages it into boxes bearing its brand, puts it into transport packaging (boxes, pallets, pallet wrap) and ships it to Retailer B . Retailer B sells it to residential consumers.	Because the cereal is sold under Company A's brand name, Company A is the obligated producer for all the packaging including the primary, secondary and tertiary packaging (boxes and pallet wrap) except the pallets, which are exempt.

Scenario	Obligated Producer
2. Food and beverage Company A contracts with Food Manufacturer B (both located in the U.S.) to produce jam and packages it into jars bearing Company A's brand in accordance with a simple contract. Manufacturer B subsequently applies transport packaging and ships the product to Retailer C who sells the jam to residential consumers.	Because Company A directs the manufacturing through its contract with Manufacturer B, Company A is the obligated producer for all primary, secondary, and tertiary (shipping) packaging except the pallets which are exempt.
3. Food and beverage Company A licenses its brand to Manufacturer B which produces ice cream and packages it. The packaging bears Company A's brand in accordance with a licensing agreement. Manufacturer B subsequently applies transport packaging and ships the product to Retailer C who sells the ice cream to residential consumers.	As a licensee of Company A's brand, Manufacturer B is directing the manufacturing and is therefore the obligated producer for all primary, secondary and tertiary packaging – except the pallets which are exempt.
4. Consumer goods Company A, that is located <i>outside</i> of the U.S., manufactures roller skates. Company A packages the roller skates into boxes bearing its brand and puts them into transport packaging. Importer B imports the roller skates into the U.S. and sells them to Retailer C who sells them to residential consumers.	As the first importer, Importer B is the obligated producer for all the primary, secondary, and tertiary packaging – except the pallets which are exempt.
5. Beverage Manufacturer A manufactures carbonated beverages in plastic bottles at its	As beverage containers defined in ORS 459A.700 are exempt products, Beverage Manufacturer A is not



Scenario	Obligated Producer
U.S. manufacturing plant. It packs the beverages into boxes bearing its brand, puts them into transport packaging (boxes, pallets, pallet wrap) and ships the packed beverages to Retailer B . Retailer B sells the beverages to residential consumers.	obligated for the plastic carbonated beverage bottles, caps or labels. However, as the manufacturer, any secondary or tertiary packaging associated with the beverages is covered product. Beverage Manufacturer A is the obligated producer for the secondary packaging such as cartons or plastic wrap that contains multiple bottles and the tertiary packaging (boxes, pallets and pallet wrap) shipped to Retailer B .

Obligated Producer Scenarios for Service Packaging and Food Serviceware

Scenario	Obligated Producer
1. Packaging Company A in the U.S. produces branded paper grocery bags for Retailer B also located in the U.S. Retailer B uses its branded paper grocery bags to bag consumers' groceries.	In Oregon, carry-out grocery bags are categorized as service packaging. The producer of service packaging is the first to sell the service packaging in or into the state. Therefore, Packaging Company A , as the first to sell the bags to Retailer B in Oregon is the obligated producer for the paper grocery bags.
2. Packaging Company A in the U.S. produces unbranded coffee cups for Retailer B , also located in the U.S. Retailer B uses the unbranded coffee cups for consumer beverages.	For food serviceware, the first party to sell in or into the state is the obligated producer. If Company A is located outside Oregon and is the first to sell the coffee cups in or into Oregon to Retailer B , Company A is the obligated producer. If Company A ships the coffee cups to a distributor located outside Oregon and the distributor sells the coffee cups to



	Scenario	Obligated Producer
		Retailer B located in Oregon, the distributor would be the obligated producer as the first to sell in or into the state.
3.	Packaging Company A, located outside the U.S., produces unbranded food serviceware which it sells to Importer B. Importer B, located in Kansas, sells the unbranded food serviceware to Retailer C in Oregon. Retailer C uses the unbranded food serviceware to serve food to consumers.	For food serviceware, the first party to sell in or into the state is the obligated producer. As the first to sell the unbranded food serviceware in or into Oregon, Importer B is the obligated producer for the food serviceware sold to Retailer C.
4.	Packaging Company A in the U.S. produces a single-use bowl for Restaurant B in Oregon with Restaurant B's logo on it. The branded bowls are used to serve food to Restaurant B's consumers. Packaging Company A also provides unbranded lids for the bowls that Restaurant B uses but they are sold separately. The lids are a generic format that can be selected from a catalog. Restaurant B uses the lids when serving food to its consumers.	For food serviceware, the first party to sell in or into the state is the obligated producer. If Company A is located outside Oregon and is the first to sell the bowls and lids to Restaurant B located in Oregon, Company A is the obligated producer for both the bowls and the lids. If Company A ships the bowls and lids to a distributor located outside Oregon and the distributor sells the bowls and lids to Restaurant B located in Oregon, the distributor would be the obligated producer as the first to sell in or into the state.
5.	Packaging Supplier A sells unbranded plastic bowls, trays, clamshells, and similar containers to Retailer B for use in Retailer B's stores. The unbranded packaging is used at Retailer B's stores to package products	For food serviceware, the first party to sell in or into the state is the obligated producer. If Packaging Supplier A is located outside Oregon and is the first to sell the bowls, trays and clamshell packaging



Scenario	Obligated Producer
prepared in-store such as deli and bakery items. Retailer B then applies a label identifying Retailer B's brand along with other product details to the product packaging prior to selling to consumers.	in or into Oregon to Retailer B, Packaging Supplier A is the obligated producer. As the company directing or performing the manufacturing of the branded labels, Retailer B is the obligated producer for the labels it applies to the food serviceware.
6. Packaging Company A in the U.S. produces a single-use take-out cup for Restaurant B located in Oregon. The cup is manufactured based on Restaurant B's specifications, including Restaurant B's logo. The cup also carries the logo of Company C, which is the beverage company that supplies fountain drinks to Restaurant B. In addition, on the bottom of the cup is Packaging Company A's logo.	For food serviceware, the first party to sell in or into the state is the obligated producer. If Company A is located outside Oregon and is the first to sell the cups in or into Oregon to Restaurant B, Company A is the obligated producer. If Company A ships the cups to a distributor located outside Oregon and the distributor sells the cups to Restaurant B located in Oregon, the distributor would be the obligated producer as the first to sell in or into the state.



Obligated Producer Scenarios for Products Sold Via E-Commerce/Remote Sales

	Scenario	Obligated producer in Oregon
1.	Consumer goods Company A manufactures toothpaste at its plant in the U.S. Company A packages it into boxes bearing its brand, puts it into transport packaging (boxes, pallets, pallet wrap) and ships it to Internet Seller B . Internet Seller B in the U.S. ships the toothpaste to residential consumers in consumer transport packaging (box).	As the company directing the manufacturing of the toothpaste, Company A is responsible for the primary toothpaste packaging. Internet Seller B is responsible for the consumer transport packaging (the box) that is used to ship the toothpaste to the consumer. Company A is also the obligated producer for any tertiary packaging used to ship the toothpaste to Internet Seller B – except the pallets which are exempt.
2.	Retailer A operates an online platform where consumers can buy groceries for home delivery. Consumer B orders groceries for home delivery. Retailer A packages the groceries and delivers them to Consumer B .	The brand owner, licensee, or first importer is the obligated producer for the primary product packaging associated with the grocery products purchased by Consumer B (the same producer responsibility as if Consumer B went to the store and purchased groceries themselves). Retailer A is the obligated producer for the transport packaging used to deliver the groceries to Consumer B .
3.	Pottery Seller A produces pottery under its own brand which it sells by listing the pottery on E-Commerce Platform B's marketplace website. Customer C orders pottery from Pottery Seller A . Pottery Seller A ships the pottery to Customer C .	As the manufacturer of the pottery, Pottery Seller A is the obligated producer for all packaging associated with shipping the pottery to Customer C . That includes any primary packaging for the pottery as well as any transport or shipping packaging used.



Scenario	Obligated producer in Oregon
4. Electronics Manufacturer Company A produces and packages consumer electronic products under its own brand. E-Commerce Platform Company B sells these electronics on its website to Customer C by shipping the electronics from its own fulfillment center.	As the brand owner directing the manufacturing of its electronic products, Electronics Manufacturer Company A is the obligated producer for all the primary packaging that it applies to the electronic products sold to Customer C. Company A is also obligated for any tertiary or shipping packaging (except the pallets which are exempt) used to send the electronics to Company B's fulfillment center. E-Commerce Platform B is the obligated producer for all shipping materials used to ship the electronics to Customer C.
5. Marketplace Platform Company A sells its branded water bottles, manufactured under contract by Manufacturer Company B , directly to consumers who purchase the water bottles through online orders on Company A's e-commerce platform.	As the brand owner directing the manufacturing of the water bottles, Company A is the obligated producer for all the packaging associated with the water bottles manufactured by Company B. This includes the product packaging, and all shipping packaging used to ship the water bottles to the consumer.
6. Toy Company A manufactures toys at its plant in the U.S. Toy Company A packages the toys into boxes and then into corrugate delivery boxes for shipping to consumers. Toy Company A drops the boxes of toys at Courier Company B's location and Courier Company B delivers the toys to residential consumers.	As the brand owner directing the manufacturing, Toy Company A is the obligated producer for the primary and secondary packaging associated with the toys. Toy Company A is also the obligated producer for the corrugate delivery boxes used for delivery to residential consumers. Courier Company B is not the obligated producer for the corrugate delivery boxes since they did not add that material – they are only providing delivery services.



	Scenario	Obligated producer in Oregon
7.	Courier Company C manufactures both Courier Company C-branded and unbranded shipping envelopes and boxes, which are primarily used for the delivery of products via e-commerce or remote distribution. Courier Company C supplies their envelopes to Company D's distribution centers and retail locations in Oregon where Company D packs and ships products on behalf of its customers. Courier Company C's shipping envelopes and boxes are also sold at retail locations to residential consumers who purchase these shipping materials for their own use.	For items sold or distributed in packaging in or into Oregon via remote sale or distribution, the producer of packaging used to ship the item to a consumer is the person that packages and ships the item to the consumer, therefore Company D is the responsible producer for the shipping envelopes and boxes it uses to pack and ship products via remote distribution. For the shipping envelopes and boxes sold at retail locations to consumers for their own personal use, the producer of the shipping or moving items is the person that manufactures the shipping or moving items therefore, Courier Company C is the responsible producer for the mailers and boxes sold to residential consumers.
8.	Food Company K assembles meal kits consisting of fresh meat, produce and pre-packaged salad dressing made by Salad Dressing Company M. Food Company K organizes the meal kits along with Company M's pre-packaged salad dressing into corrugate boxes and delivers them to residential consumers' homes.	As the company assembling the food kits into corrugate boxes for delivery to consumers, Food Company K is the obligated producer for the corrugate boxes used to deliver the meal kits to consumers' homes. As the brand owner of the salad dressing, Salad Dressing Company M is the obligated producer for all the salad dressing packaging included in the meal kit.



Obligated Producer Scenarios for Paper and Paper Products

		Obligated Producer in Oregon
1.	Paper Product Company A located in the U.S. sells paper to Printer B . Printer B produces simple, one-page 8.5x11" flyers for Company C (the publisher) in the U.S. and mails them to residents.	Since flyers do not require specialty printing, Paper Product Company A that sells the paper to Printer B is the obligated producer for the flyers.
2.	Greeting cards are manufactured by and bear the brand of Company A , located in the U.S. Company A sells its greeting cards with envelopes to Retailer B who sells the greeting cards to consumers.	Greeting cards with accompanying envelopes are categorized as "Paper for General Use" and do not require specialty printing, therefore, the three-tiered definition of obligated producer applies and Company A , which manufactures the greeting cards and envelopes under its own brand, is the obligated producer for these materials.
3.	Appliance Manufacturer A sells its own branded appliances to consumers through Retailer B . The appliances are accompanied by an owner's manual, which is provided to the consumer with the appliance.	An owner's manual requires specialty printing therefore, Appliance Manufacturer A , as the publisher, is the obligated producer for the owner's manuals that accompany the appliances (as well as all the packaging that comes with the appliance delivered to the consumer).
4.	Paper Product Company A located in the U.S. sells paper to Printer B . Printer B produces both financial statements and glossy brochures for Bank C , which distributes them to its customers.	Because financial statements do not require specialty printing, Paper Company A is the obligated producer for the financial statements distributed to Bank C's customers. Glossy brochures <u>do</u> require specialty printing, therefore, Bank C , as the publisher of the brochures is the obligated producer for those materials.



Appendix A

Determining the party who directs the manufacturing under EPR Law in Oregon

The Oregon EPR regulations use the text “directs the manufacturing” as one key factor in determining the responsible producer for covered materials.

The question of responsibility often arises when a contract manufacturer is involved (e.g., producing a private label product) or when multiple brands may be included on a product (e.g., a cup that includes a restaurant’s brand and the cup manufacturer’s brand).

The text “directs the manufacturing” refers to the party that provides instruction through a form of a negotiated supplier agreement that sets specifications for their packaging, which, at a minimum, covers basic quality control over its brand and typically includes additional direction regarding a product or package.

Contract Manufacturing

In most cases, the brand owner (i.e., private-label brand or name brand), even when they outsource manufacturing of the product or packaging to a third party, are still the obligated producer for the covered materials. The unique nature of the role played by the brand owner in procuring manufacturing services on its behalf imposes on it the role of “directing the manufacturing”.

Brand Licensing

Where the brand owner merely licenses its brand to a manufacturer without directing production of the underlying product and packaging, the Manufacturer Licensee is the producer. In these situations, Manufacturer Licensees typically distribute and sell the products under the brand name.

Unique Role of Brand Owner

- No third-party contract manufacturer produces an item unless directed to do so by a brand owner or a party working on a brand owner's behalf. The fact that this manufacturing activity only after an order is placed constitutes the role of "directing the manufacturing" of those products.
- Brand owners set specifications for their products in order to protect their trademark. Brand owners specify or approve the overall packaging for the third-party manufacturer to use on its products in order to maintain oversight not only of the public perception of its brand but also the quality of the products being manufactured under its name.
- The third-party manufacturer will apply the brand owner's Intellectual Property to the product packaging which includes directing how a logo is used, color palettes and graphic design specifications. In some cases, packaging design review and approval even goes through the brand owner's internal or agency approvals process. Specifying the design guidelines to which a manufacturer must adhere constitutes the action of "directing the manufacturing".
- Brand owners exert influence over their contract manufacturers by specifying certain requirements which might include:
 - Maintenance of certain facility environmental, safety and quality standards
 - The imposition of timelines for production and a requirement to use certain shipping processes
 - Requirement to notify the brand owner of any manufacturing failures and/or system maintenance interruptions

The nature of the above-noted control over the production and distribution of product and packaging requirements clearly demonstrates direction on the part of the brand owner.

Consistent with Liability Law

Holding the brand owner responsible under EPR legislation is also consistent with product liability law, which is well-established. The law regularly holds brand owners liable for products that are manufactured by third-party manufacturers. Product liability is placed on the party that authorizes the use of its trademark, particularly when the product bears no indication that it was manufactured by any other entity. It has been established through legal decisions that where a licensor controls the design, manufacture or quality of the merchandise manufactured on its behalf the liable party for any defective goods.

EPR laws align with these product liability principles since brand owners play a significant role in bringing its branded products to the market. Just like a trademark owner cannot evade liability for a dangerous product by contracting out manufacturing, neither should a brand owner be able to avoid its EPR obligations by assigning them to a contract manufacturer.



Implementation and Enforcement Considerations

Assigning EPR responsibilities to a contract manufacturer makes the successful implementation and enforcement of the statute and regulations virtually impossible. The contract manufacturer's name and identity are not identified on the packaging or product, meaning that neither the regulator nor CAA would be able to identify the responsible producer for that covered material. In many cases, brand owners go to great lengths to ensure the identity of their contract manufacturers are protected.

Conclusion

CAA recognizes that there is a huge diversity of supply chain arrangements whereby contract manufacturers are used to produce other companies' products and packaging. In some cases, the relationship between the brand owner and the actual manufacturer may appear to be several steps removed. In fact, in some cases, a brand owner's manufacturing and brand identity specifications may only be posted on a website and not contained in a contract between the brand owner and the manufacturer. But regardless of the actual supply chain arrangements and where the product and manufacturing specification reside, ultimately a branded product is only put on the shelf because the brand owner directed that it be manufactured and, therefore, has a producer obligation as a manufacturer under the Oregon EPR regulations.



Appendix B

Examples of Covered and Not Covered Materials

The following table responds to the most frequent producer requests for clarification on covered and not covered products in Oregon. These examples reflect CAA's interpretation of both the statutory and rule language and are intended as guidance for informational purposes only and do not constitute legal advice.

Item	Candle Holder	Aluminum Tea Light Holder	Ceramic Flowerpot	Plastic Plant/ Flowerpot	Lipstick Tube/ Lip Balm Jar	Mascara Tube, Wand/Makeup Palette
						
CAA's Assessment of Covered or Not Covered	Not Covered	Covered	Not Covered	Not Covered	Covered	Covered

Item	Non-Durable Tape Dispenser	Toner Cartridge	Report Cover	Binder	Binder Inserts	Disposable Lighter
						
CAA's Assessment of Covered or Not Covered	Covered	Not Covered	Not Covered	Not Covered	Not Covered	Not Covered

Item	Spray Paint Container	Cheese Wax	Sausage Casing	Measuring / Dosing Cup	Paper Tablecloths / Placemats	Silica Packets	Absorbent Meat / Produce Soaker Pads
							
CAA's Assessment of Covered or Not Covered	Covered	Covered	Not Covered	Not Covered	Not Covered	Not Covered	Not Covered

Item/Storage Item	Ice Packs	Temperature Indicator	Mason Jar (purchased as product)	Non-durable Rigid Plastic Container	Glass Food Container	Steel Bento Box
						
CAA's Assessment of Covered or Not Covered	Not Covered	Not Covered	Covered	Covered	Not Covered	Not Covered

The following are examples of packaging items that are excluded because they meet the definition in **459.863 Definitions (6)(b) B2B Specialty packaging items that are used exclusively in industrial or manufacturing processes**

- (E)** Specialty packaging items that are used exclusively in industrial or manufacturing processes, including, but not limited to:
- (i) Cores and wraps for rolls of packaging sold by a mill to a packaging converter or food processor; and
 - (ii) Trays, whether designed for a single use or multiple uses, used for the transport of component parts from a parts supplier to a manufacturer that assembles those parts

These examples reflect CAA's interpretation of both the statutory and rule language and are intended as guidance for informational purposes only and do not constitute legal advice.

Specialty Packaging	Drums	Industrial Trays	Industrial Sacks	Gaylords	Intermediate Bulk Containers (IBCs)/ Totes
					
CAA's Assessment of Covered or Not Covered	Not Covered	Not Covered	Not Covered	Not Covered	Not Covered

FAQs

What differentiates a 3PL partner from a shipping company in terms of placing the obligation for shipping packaging for products sold by remote distribution?

CAA interprets this question to refer to the remote sale or distribution of products to end consumers for their personal, family, household and business purposes. CAA does not consider the distribution of products and associated “covered products” to retailers that subsequently supply or sell such products to end consumers in Oregon to mean “items sold or distributed in packaging in or into the state via remote sale or distribution” pursuant to ORS 459A.866(1)(b).

Which entity “packages and ships” the item to the consumer is what differentiates a 3PL partner from a shipping company with respect to the obligation for shipping packaging associated with products supplied to end consumers. Where a 3PL partner is fulfilling orders on behalf of a seller, the 3PL partner clearly “packages and ships” the products that are ultimately sent to end consumers. In this case the 3PL partner would be the obligated party to report and pay fees on the shipping packaging used to deliver the product to the end consumer.

On the other hand, if a seller “packages and ships” a product and the shipping company is simply acting as the carrier, the seller is the entity that “packages and ships” the product and would be responsible for the packaging used to ship the products it sells to end consumers.

The fact that a carrier’s logo may appear on the shipping packaging doesn’t automatically obligate the carrier for such shipping packaging. For example, a carrier may sell its branded shipping packaging to an ecommerce seller that subsequently packages and prepares products for shipment using a carrier’s delivery services. The carrier, in this case, will collect the package from the seller and deliver the product to the end customer. In this case, the seller is the entity that “packages and ships” the product to the end consumer and is therefore responsible to report and pay fees on the shipping packaging.

What is the difference between “physical retail” and “remote distribution”?

It is CAA’s understanding that the policy distinction being made between 866(1)(a) (retail producer definition) and 866(1)(b) (remote distribution producer definition) is one of sale to end consumers at a physical location vs. remote sale, to allow for the obligation of e-commerce providers for shipping packaging. With respect to items sold at physical retail, the distinction of retail



physical sale vs. wholesale physical sale does not have a policy basis and, as a result, it is appropriate to interpret that 866(1)(a) broadly applies to any sales to end consumers at a physical location.

Business-to-business transactions of packaged items would be considered sold or distributed “via remote sale or distribution to an end consumer”, unless those packaged items are subsequently resold or supplied at physical retail.

Who is considered a consumer?

As both residential and commercial generators have access to comingled recycling services under the Opportunity to Recycle Act, producers are responsible to fund the management of covered products from both residential and business consumers. Given this, producers are required to report and pay fees on the total quantity of covered products that they either directly or indirectly supply to both residential and business consumers in Oregon.

The RMA does allow for an exemption from the requirement to report and pay fees on covered products that are managed through a recycling collection service not provided under the opportunity to recycle, providing that the collected material does not undergo separation from other materials at a comingled recycling processing facility and is recycled at a responsible end market. Producers must apply for this exemption provided under ORS 459A.869(13), directly to DEQ.

What is meant by the following: “Covered Product” does not include: “Any item that is not ultimately discarded inside this state, whether for purposes of recovery or disposal” pursuant to ORS 459A.863 Definitions (6)(b)(J)?

The statute provides an exemption from the obligation to report and pay fees on any item that is not ultimately discarded in Oregon. This exemption is distinct from and should not be confused with the exemption under ORS 459A.869(13) for material that is managed through a recycling collection service not provided under the opportunity to recycle, providing that the collected material does not undergo separation from other materials at a comingled recycling processing facility and is recycled at a responsible end market.

CAA interprets “Ultimately discarded” to mean “set aside for the sole purpose of recovery or disposal, when the material provides no additional useful function to the generator.” This means that the determination of whether an exemption under this subsection is applicable or not, depends on the location of the generator when a decision is made to discard the item, and not the location of where the item is ultimately recovered or disposed. For example, items that an Oregon-based generator places



in a disposal or recycling container that are subsequently shipped out of state to be managed would not be eligible for this exemption as the item was "ultimately discarded" in Oregon by the generator.

How should producers report covered materials that have been banned from distribution in the state or incorporated into other state recycling programs (e.g., the “Bottle Bill”)?

- Single-use checkout bags: Effective Jan. 1, 2027, retail establishments and restaurants are prohibited from providing single-use checkout bags to customers as outlined in [SB 551](#). Producers should not include this material in their May 31, 2026 supply reports and no fees will be applied to this material. Please note: SB 551 was amended in 2025 to expand the definition of single-use checkout bags. As of Jan. 1, 2027, recycled paper bags will be the only allowable checkout bags according to the updated definition in SB 551 as follows:
(7)(a) “Single-use checkout bag” means a bag made of paper, plastic or any other material that is provided by a retail establishment or restaurant to a customer at the time of checkout and that is not a recycled paper checkout bag”.
- Wine in cans: Effective July 1, 2025, wine in cans are now covered under the Oregon Bottle Bill and are eligible for a redemption as outlined in [SB 1520](#). Producers of these products should not include this material in their May 31, 2026 supply reports and no fees will be applied to this material.
- Polystyrene foam containers and packaging peanuts: Effective Jan. 1, 2025, food vendors are prohibited from using polystyrene foam containers when serving or dispensing prepared food to a consumer as outlined in [SB 543](#). Additionally, according to the same bill, a person may not sell or distribute in or into Oregon polystyrene foam containers or polystyrene foam packaging peanuts, nor may they sell, or distribute in or into Oregon a foodware container containing intentionally-added perfluoroalkyl or polyfluoroalkyl substances (PFAS). Obligated producers in Oregon that are no longer supplying "polystyrene foam containers" or "polystyrene foam packing peanuts" as defined under Senate Bill 543 (ORS 459.465 to 459.477) due to the prohibition effective Jan. 1, 2025, should not include these materials in their May 31, 2026 supply reports. All other covered polystyrene packaging that is continuing to be sold should be included in producers’ 2026 supply reports.

